chief minister when his own government allotted the lease in May 2021, and when environment clearance came through four months later. The CM, who also holds the mining and environment portfolios, thus risked running afoul of the Representation of the People Act, 1955. Specifically, its Section 9A, which prohibits elected representatives from entering into any contract with the government for "supply of goods" or "execution of any works undertaken" by it. Since the land has never been mined, whether mere intent to do so could invoke those clauses is a fascinating legal conundrum. But after the BJP red-flagged the issue, Soren surrendered the lease this February, calling the lease renewal an "administrative error". But the issue was symbolically—and, more to the point, legally—damaging.

THE NUMBERS GAME

TOTAL SEATS: 81
(excluding nominated member)

RULING COALITION

30	18	1
JMM	CONGRESS*	RJD

*including 3 suspended

OPPOSITION

26	2	1
BJP	AJSU PARTY	INDEPENDENT

THE SOREN STORY SO FAR

MAY 2021
Hemant Soren gets a renewal on a mining lease dating to 2008

FEB. 2022
Soren surrenders lease following uproar; BJP approaches Governor Ramesh Bais, seeking Soren's disqualification under the Representation of People Act

MAR. 2022
Governor sends the BJP petition to Election Commission of India

MAY 2022
EC issues notice to Soren, asking him to reply

JUL.-AUG. 2022
Three Congress MLAs caught with Rs 49.37 lakh in cash in Kolkata; Congress leadership blames BJP for horse-trading and suspends the three legislators; ECI hears arguments and communicates decision to the Jharkhand Governor; Soren shifts MLAs to Raipur

How damaging? That depends. It could be a mere disqualification, or it could extend to a bar on contesting elections. Governor Ramesh Bais, who has to act in accordance with the EC's recommendation, has been silent so far. Some UPA legislators blame him for deliberately delaying the decision, which could encourage political horse-trading. With just 29 MLAs in the 82-seat assembly (including a nominated Anglo-Indian)—the BJP's 26, two of AJSU Party, one Independent—the opposition NDA is in no position to topple the government unless some UPA MLAs switch sides or resign. Though the UPA has 49 MLAs—JMM 30, Congress 18, one RJD—the CM is taking no chances. He has reasons to be cautious as the Congress suspended three MLAs following their arrests in July in Kolkata where they were caught with Rs 49.37 lakh in cash. There is a possibility that they may abstain or refuse to back the coalition government after Soren is disqualified. The chief minister's brother, Dumka MLA Basant Soren, too is facing EC scrutiny over a mining lease and may find himself facing a similar fate.

On another front , Speaker Rabindra Nath Mahto (who is from the JMM) is hearing a case against BJP legislature party leader Babulal Marandi under the anti-defection law, relating to his Jharkhand Vikas Morcha (Prajatantrik) merging with the BJP in February 2021. If that results in any action, it could trim the BJP's numbers too.

It all began in February with the BJP's Jharkhand unit submitting a petition to Governor Bais seeking Soren's disqualification, which Bais forwarded to the EC in March. The latter held a series of hearings, winding up on August 18, a week before news broke of its purported decision. On August 27, trying to convey a sense of solidity, Soren and MLAs of his ruling coalition boarded three buses and went on a day trip to Khunti, returning to Ranchi in the evening. Just two days later, however, Soren thought it prudent to send the MLAs away from Jharkhand.

THE OPPOSITION NDA CANNOT TOPPLE SOREN UNLESS SOME UPA LEGISLATORS QUIT OR SWITCH SIDES

Though Soren told media persons in Ranchi that he was yet to receive a formal communication from the Governor's office or the EC, he seems to have reconciled to the possibility of losing his assembly membership, even tweeting: "*Hain taiyyar humm* (We are ready)". That in no way means he will not try to save his government, even if that means having a family member as stopgap CM if the situation so warrants. Wife Kalpana tops the list of probables. Meanwhile, the JMM is working on the option of Soren filling out the six months avail-